

4	Dubon v. Ventura Foods, LLC 2024-01377979	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$770,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff (not to exceed); \$231,000.00 for attorneys' fees (not to exceed); \$40,000.00 for attorneys' costs (not to exceed); \$13,850.00 for settlement administration fees (not to exceed); and \$50,000.00 total PAGA penalties (\$37,500.00 to LWDA). Plaintiff is ordered to file and serve <u>by August 27, 2026</u> a revised proposed order (stating the above amounts) <u>with all exhibits attached</u> (settlement agreement; amendments thereto, notice packet (in English and Spanish)). The proposed order should include the following paragraph: "The Maximum Settlement Amount is \$770,000. The court preliminarily approves the following deductions from the Maximum Settlement Amount: (i) attorneys' fees not to exceed \$231,000; (ii) attorneys' costs not to exceed \$40,000; (iii) an enhancement award to plaintiff not to exceed \$5,000; (iv) settlement administration fees not to exceed \$13,850; and (v) total PAGA penalties of \$50,000 (\$37,500 to the LWDA)." The notice should be revised as follows: - The first sentence of the paragraph entitled "Attorneys' Fees and Expenses" on page 3 of the notice should be removed. - At the end of the second sentence of the paragraph entitled "Attorneys' Fees and Expenses" on page 3 of the notice, the phrase "and will not exceed \$231,000" should be inserted after "Maximum Settlement Amount." - The fourth sentence of the paragraph entitled "Attorneys' Fees and Expenses" on page 3 of the notice should be removed. - In the first sentence of the paragraph entitled "Service Payment to Class Representative" on page 3 of the notice, the phrase "in the amount of" should be replaced with "not to exceed." - The portion of the paragraph entitled "Payments to Class Members" on page 3 of the notice that addresses the cy pres recipient should be revised as stated below.
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		In addition, the parties are ordered to file by August 27, 2026 a further executed amendment to the settlement agreement addressing the following issues: 1. The "Released Parties" provision in paragraph 1.40 of the amendment to the settlement agreement remains overbroad as it continues to include unrelated, unidentified and/or ambiguous third parties. The following words should be removed: "attorneys, insurers." 2. Defendant's counsel states counsel's firm has a relationship with the proposed cy pres recipient. Witt Decl. (ROA 118) ¶ 2. In addition, the parties have not demonstrated the propriety of the cy pres recipient and distribution under Civil Procedure Code section 384. The court accordingly agrees with plaintiff's alternative suggestion that any unclaimed funds be distributed to the State Controller's Office in the name of the class member/aggrieved employee. Blakeley Decl. (ROA 124) ¶ 11. The final approval hearing is scheduled for <u>February 11, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org). Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
5	Gonzalez v. Network Capital Funding Corporation 2021-01226206	Off calendar.
6	Lawson v. Executive Maintenance, Inc. 2019-01107756	<u>Plaintiff David Lawson's Motion for Attorneys' Fees</u> Plaintiff David Lawson moves for an award of attorneys' fees following the January 14, 2026 judgment (ROA 1004) entered in this matter, in which the court awarded plaintiff and the Meal Period Class \$131,917 in damages and prejudgment interest, plaintiff and the Rest Period Class \$359,015 in damages and prejudgment interest, plaintiff and the Wage Statement Subclass \$70,100 in statutory penalties, plaintiff and the Waiting Time Penalties Subclass \$76,932 in statutory penalties, and plaintiff, in his representative capacity under the California Private Attorneys General Act (PAGA) on behalf of the Labor Workforce Development Agency (LWDA) and the PAGA aggrieved employees, \$282,000 in civil penalties for meal and rest period violations. Plaintiff's counsel seeks an award of \$603,904 in attorneys' fees, based on 1,286.60 claimed hours of attorney and staff work. (Plaintiff withdraws his request for reimbursement for 42.8 hours of these hours in his reply.) Plaintiff also asks that the court add "unpaid monetary sanctions imposed on defendants Executive Maintenance, Inc., David Moltz, Patricia May, and William May, totaling \$25,488.68" to the judgment. In addition to reading and considering all papers